

Unsafe Building Hearing August 14th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=zVcFxPZku7c
Publication Date	2025-08-15T07:30:13Z
Target Category	muncie_city

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Meeting Summary: Unsafe Building Hearing Authority

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called to order the August 14, 2025 meeting of the Unsafe Building Hearing Authority. The Unsafe Building Law (IC 36-7-9) was officially entered into the record.
- **Attendance:**
 - **Board Members Present:** Gretchen Cheeseman, Mayor Dan Ridenower, and Jeff Green.
 - **City Staff Present:** Hannah Collins, Rebecca Moon, Melinda Coffee, Richard Rawlings (Administrators), Aubrey Christ (City Attorney), and Courtney Walker (Recording Secretary).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Participants and attendees standing for the hearing were collectively sworn in under penalty of perjury ([00:02:50](#)).
- **Approval of Minutes:** *Not explicitly addressed in the provided transcript.*

4. Substantive Business & Board Action

- **00:03:23 New Case: 2115 East Indiana Avenue (Rehab Order)**
 - **Sponsor / Presenter:** City Staff / Kevin Casper (Tenant/Representative for owners Violet Hudson and William Brown).
 - **Deliberation Summary:** Discussion regarding property cleanup, removal of a front porch roof causing structural sagging concerns, and electrical repairs. The tenant noted an electrician was being contacted to pull permits and fix electrical issues (currently utilizing a generator).
 - **Item-Specific Public Input:** Kevin Casper testified regarding ongoing cleanup and coordination with an electrician.
 - **Action & Vote Disposition:** Approved by Voice Vote (Motion to affirm order, continue to the September hearing, and require an inspection prior to the hearing).
- **00:07:25 Continued Case: 326 West 6th Street (Rehab Order #8)**
 - **Sponsor / Presenter:** Diana Case (Representative/Partner).
 - **Deliberation Summary:** Presented a progress report inspection. The board noted that structural work permits are active and estimated completion is expected within 60 days before cold weather.
 - **Item-Specific Public Input:** Diana Case testified that the project is nearly finished.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days, requiring an inspection prior to the next hearing).
- **00:08:59 Continued Case: 4305 West Burton Drive (Rehab Order #9)**
 - **Sponsor / Presenter:** James Merchant (Property Owner).
 - **Deliberation Summary:** Discussed progress on garage doors, siding on the back of the house, and driveway cleanup. Photos were submitted and entered into the file showing major improvements.
 - **Item-Specific Public Input:** James Merchant testified regarding time/financial hurdles and upcoming vacation time dedicated to completing the siding.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days, requiring an inspection/photos prior to the next hearing).
- **00:11:51 Continued Case: 309 South Cole Avenue (Rehab Order #11)**
 - **Sponsor / Presenter:** Barry Harris (Representative for property owner/daughter).
 - **Deliberation Summary:** The board discussed exterior repairs (chimney, roofing, gutters) following storm damage. The interior remains vacant and under construction, with flooring repairs and painting pending.
 - **Item-Specific Public Input:** Barry Harris testified regarding storm insurance delays, out-of-pocket costs, and intentions for his daughter to occupy the home.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued to the November hearing, requiring an inspection prior to the hearing).
- **00:16:36 Continued Case: 501 South Hawthorne Drive (Rehab Order #14)**
 - **Sponsor / Presenter:** Sherry Store (Property Owner).

- **Deliberation Summary:** Trash has been cleared and a hazardous tree against the house has been removed. The owner plans to list the property for sale "as is."
 - **Item-Specific Public Input:** Sherry Store testified about the tree removal delays and upcoming listing plans.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days to get the property listed for sale, requiring an inspection prior to the next hearing).
- **00:20:03 Continued Case: 426-428 West Howard Street (Rehab Order #15)**
 - **Sponsor / Presenter:** Property Owner (name noted as Winters/Kier).
 - **Deliberation Summary:** Debris and ivy have been cleared, exterior painting has begun, and two metal doors were found. The board discussed securing open attic/back windows and the lack of space for a dumpster. Board member Melinda Coffee suggested checking with the Muncie Land Bank regarding a nearby paved lot at 425 West Charles for temporary dumpster placement.
 - **Item-Specific Public Input:** The owner discussed challenges with contractor schedules and dumpster logistics.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days for floor work completion and inspection prior to the next hearing).
- **02:27:55 Continued Case: 1022 East Kirby Avenue (Rehab Order #16)**
 - **Sponsor / Presenter:** Property Owner (Winters/Kier).
 - **Deliberation Summary:** Staff noted landscape maintenance and grass cutting have been performed. The board requested the owner focus efforts on one property at a time.
 - **Item-Specific Public Input:** The owner acknowledged focusing efforts on Howard Street.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued out for approximately 6 months to February 12, prioritizing the Howard Street property).
- **00:30:42 Continued Case: South Macedonia Avenue (Rehab Order / Administrative Enforcement)**
 - **Sponsor / Presenter:** Timothy Moore (Property Owner).
 - **Deliberation Summary:** The property suffered damage from a neighboring fire. The owner has pulled permits and completed inspections, though progress was slowed by health issues.
 - **Item-Specific Public Input:** Timothy Moore testified about health delays and repairs.
 - **Action & Vote Disposition:** Approved by Voice Vote (Moved to administrative enforcement so the owner can continue working and scheduling inspections without recurring hearings unless work stops).
- **00:33:07 Continued Case: 105 West Main Street (Rehab Order #22)**
 - **Sponsor / Presenter:** Jerry Dowen (Property Manager/Contract Buyer) and Mr. Casari (Owner of record); David Fischer and Daniel Fischer (Tenants); Patrick Ors (Realtor).

- **Deliberation Summary:** Extended and contentious debate regarding foundation damage, property transfer delays, and parallel landlord-tenant disputes in circuit court regarding leases, evictions, and injunctions. Tenants raised habitability complaints, high electric bills, and medical access conflicts, while the realtor and owner cited tenant obstruction and lack of cooperation regarding contractor access.
 - **Item-Specific Public Input:**
 - Jerry Downen and Mr. Casari testified about foundation repair quotes and tenant access friction.
 - David and Daniel Fischer testified regarding habitability issues, electrical costs, and ongoing court injunctions/eviction proceedings.
 - Patrick Ors (Realtor) testified regarding obstacles in scheduling property access and the sales process.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days to November 13 to finalize property transfer, allow contractor access after 12:00 PM, and initiate foundation work, requiring an inspection prior to the hearing).
- **00:51:59 Continued Case: 928 North Gavin Street (Demo Order #39)**
 - **Sponsor / Presenter:** Representative for owner Antonio.
 - **Deliberation Summary:** Grass has been mown, and work is moving forward. The owner plans to have workers on-site over the weekend to lay floor joists and install house wrap.
 - **Item-Specific Public Input:** The representative testified regarding upcoming material installations and requested a 30-day extension.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 30 days with a required inspection).
- **06:40:24 Continued Case: 1200 South Mulberry Street, Apartment 6 (Rehab Order #24)**
 - **Sponsor / Presenter:** Kevin Hansen (Owner/Representative).
 - **Deliberation Summary:** The previous tenant has been evicted, and the vacant apartment is scheduled for a complete remodel once Building 3 is finished.
 - **Item-Specific Public Input:** Kevin Hansen explained staffing shortages and crew focus on Building 3.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days with a required inspection).
- **00:56:46 Continued Case: 1200 Adjacent South Mulberry Street, Building 3 (Rehab Order #25)**
 - **Sponsor / Presenter:** Kevin Hansen (Owner/Representative).
 - **Deliberation Summary:** Building contains 16 units, reported to be approximately 50% to 70% complete following a recent inspection on August 12.
 - **Item-Specific Public Input:** Kevin Hansen discussed crew progress and requested adequate inspection scheduling windows.

- **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days, requiring an inspection prior to the hearing scheduled at least 10 days in advance).
- **00:58:42 Continued Case: 1720 West 7th Street (Demo Order #30)**
 - **Sponsor / Presenter:** Patrick Ors (Realtor representing Ms. Kenison).
 - **Deliberation Summary:** The asking price was reduced from \$19,900 to \$9,900. The property has fire damage in a middle room and a demo order placard that is deterring buyers, though the lot is cleaned up and boarded up. Demolition bids remain on file as a backup.
 - **Item-Specific Public Input:** Patrick Ors testified about price reductions, active offers, and buyer hesitation due to the demolition sign.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days).
- **02:18:58 Continued Case: 1621 West 16th Street (Rehab Order #33)**
 - **Sponsor / Presenter:** Daryl Bennett (Property Owner).
 - **Deliberation Summary:** The property has finally been transferred into the owner's name. The interior requires a complete gutting due to fire damage and plaster/lath removal. Cleanup is underway using a personal dump truck on weekends.
 - **Item-Specific Public Input:** Daryl Bennett testified regarding weekend debris hauling to Randolph County and upcoming permit and contractor needs.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days, requiring an inspection prior to the hearing).
- **06:26:24 Continued Case: 2009 North Alt Avenue (Rehab Order #34)**
 - **Sponsor / Presenter:** Javier Hernandez (Property Owner).
 - **Deliberation Summary:** The owner presented photos of a fully renovated comparable property on Yale Avenue to demonstrate capabilities. Demolition down to the studs is underway at the Alt Avenue property, with construction materials on-site.
 - **Item-Specific Public Input:** Javier Hernandez testified about project timelines, crew allocations, and projected completion by late October.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days, requiring permits, inspection, and completion).
- **09:48:00 Continued Case: 2007 South Elm Street (Rehab Order #38)**
 - **Sponsor / Presenter:** Kevin Davidson (Property Owner).
 - **Deliberation Summary:** The owner has combined three lots into a single parcel and maintains the grounds, but struggles to sell due to blighted conditions, high grass, and suspected drug activity at adjacent/nearby properties (including 2017 South Elm owned by an Indianapolis land trust).
 - **Item-Specific Public Input:** Kevin Davidson testified regarding property taxes, adjacent blight, security issues with trespassers, and prospective buyers.
 - **Action & Vote Disposition:** Approved by Voice Vote (Continued for 90 days).
- **16:45:00 Continued Case: 1421 East Highland Avenue (Rehab Order #40)**
 - **Sponsor / Presenter:** Carl Long (Representative).

- **Deliberation Summary:** An interested local investor is reviewing title work at Indiana Title Company next week and intends to purchase and renovate the property.
- **Item-Specific Public Input:** Carl Long testified regarding investor interest, title searches, and planned closing timelines.
- **Action & Vote Disposition:** Approved by Voice Vote (Continued for 60 days).
- **19:13:00 Case Release: 800 South Macedonia Avenue (Rehab Order #46)**
 - **Sponsor / Presenter:** Kome Shill (Property Owner).
 - **Deliberation Summary:** The property received a final pass inspection and no longer requires hearings. The owner attended to support another property owner and inquire about neighborhood conditions regarding nearby blighted parcels (807/809 South Macedonia).
 - **Item-Specific Public Input:** Kome Shill testified about successfully passing inspections and raised concerns regarding blight and neighborhood issues at nearby properties.
 - **Action & Vote Disposition:** Approved by Voice Vote (Released from the unsafe building docket).
- **01:22:16 En Masse Docket Action (Multiple Properties)**
 - **Deliberation Summary:** The board noted that no one appeared at the hearing on behalf of the owners of record after due notice for a specified list of docketed properties.
 - **Action & Vote Disposition:** Approved by Voice Vote (Building commissioner reports and staff-recommended orders adopted as findings of the hearing authority for docket numbers: 1, 2, 4 through 7, 10, 12, 13, 17<U+2013>20, 23, 26<U+2013>29, 31, 32, 35<U+2013>37, 41<U+2013>45, and 47<U+2013>51).

5. Open Public Comment / Citizen Forum

No separate open public comment period independent of specific agenda items was held; public input was integrated directly into individual case hearings.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Reminder regarding remote broadcast availability for public viewing.
 - **Adjournment:** Motion to adjourn made and seconded; approved by voice vote (**01:23:08**).
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